# Title 43—PUBLIC LANDS: INTERIOR

## Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2448]

[1381268]

[Anchorage 049231]

### ALASKA

### Revoking Executive Order No. 5364 of June 5, 1930 (Unalaska Island)

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 5364 of June 5, 1930, withdrawing certain public lands on Unalaska Island, Alaska, for use of the Department of the Navy, which was revoked in part by Public Land Order No. 1087 of March 8, 1955, is hereby revoked in its entirety. The following-described lands are released from withdrawal by this order:

UNALASKA ISLAND

All lands lying between 53°49′ North Latitude and 53°51′ North Latitude and between 166°34′ West Longitude and 166°38′ West Longitude, containing approximately 4,199 acres.

2. The State of Alaska has waived its preference rights to select the lands.

3. The public lands released from withdrawal by this order are hereby restored to the operation of the public land laws, including location under the United States mining laws for nonmetalliferous minerals, subject to valid existing rights and equitable claims, the requirements of applicable law, rules, and regulations, and the provisions of any existing withdrawals. They have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

KENNETH HOLUM,
*Assistant Secretary of the Interior.*

JULY 26, 1961.

[F.R. Doc. 61-7201; Filed, July 31, 1961; 8:49 a.m.]

[Public Land Order 2449]

[Montana 044168 (SD)]

### SOUTH DAKOTA

### Withdrawing Lands for Use of the Department of the Air Force for Military Purposes

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws including the mining but not the mineral leasing laws nor disposals of materials under the Act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601–604), as amended, and reserved for use of the Department of the Air Force for military purposes:

BLACK HILLS MERIDIAN

T. 9 N., R. 1 E.,
Sec. 12, E½SW¼SW¼.
T. 12 N., R. 2 E.,
Sec. 4, N½SW¼NE¼ and N½S½SW¼NE¼.
T. 11 N., R. 1 E.,
Sec. 13, SE¼NE¼NE¼ and NE¼SE¼NE¼.
T. 12 N., R. 3 E.
Sec. 29, SE¼SE¼NE¼.
T. 10 N., R. 8 E.,
Sec. 18, SE¼NW¼NW¼, W½SW¼NE¼-NW¼, and NW¼NW¼SE¼NW¼.

Containing 97.50 acres.

JULY 26, 1961.

KENNETH HOLUM,
*Assistant Secretary of the Interior.*

[F.R. Doc. 61-7202; Filed, July 31, 1961; 8:49 a.m.]

# Title 49—TRANSPORTATION

## Chapter I—Interstate Commerce Commission

[Ex Parte No. MC-58]

### PART 7—LIST OF FORMS, PART II, INTERSTATE COMMERCE ACT

### Form for Designation of Agent for Service of Process by Motor Carriers and Brokers

At a session of the Interstate Commerce Commission, Motor Carrier Board No. 1, held at its office in Washington, D.C. on the 20th day of July A.D. 1961.

The matter of revision of Form BMC 3, Designation of Agent for Service of Notices, Orders, and Process, required to be filed by motor carriers and brokers subject to part II of the Act, being under consideration; and

It appearing that Form BMC 3 should be revised to implement the rules and regulations governing designation of process agents by motor carriers and brokers prescribed pursuant to the order of the Commission, Division 1, entered January 28, 1960, and published in the FEDERAL REGISTER on February 10, 1960 (25 F.R. 1160), the effective date of which order was indefinitely postponed following the receipt of petitions seeking certain relief in respect thereto, which petitions were generally denied and the order of January 28, 1960, was reinstated and its effective date fixed as August 11, 1961, pursuant to the Commission's order of June 21, 1961;

*It is ordered,* That 49 CFR 7.3 B.M.C. 3 be deleted in its entirety and that the following section be substituted in lieu thereof:

**§ 7.3 B.M.C. 3.**

Designation of agent for service or notices, orders and process. Sections 221(a) and 221(c) of the Interstate Commerce Act. This form is required to be filed with all applications for authority to operate under the Act on Forms BMC 4, 5, and 78.

*It is further ordered,* That Form BMC 3 (49 CFR 7.3) Designation of Agent for Service of Notices, Orders, and Process, which was adopted and prescribed pursuant to the minutes of the Commission dated October 8, 1935, and revised in 1956, be, and it is hereby, revised in accordance with the specimen of such form which is attached hereto and made a part hereof,[1] and its hereby adopted and prescribed for use by motor carriers and brokers subject to part II of the Act.

*It is further ordered,* That the Form BMC 3 (49 CFR 7.3) prescribed and adopted October 8, 1935 as revised in 1956, be, and it is hereby, canceled.

*It is further ordered,* That this order shall be effective October 31, 1961, and shall continue in effect until further order of the Commission.

*And it is further ordered,* That notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission, Washington, D.C., and by filing a copy with the Director, Office of Federal Register.

(Secs. 204(a), 221(a) and 221(c), 49 Stat. 546, 563, as amended; 49 U.S.C. 304, 321)

By the Commission, Motor Carrier Board No. 1.

[SEAL] HAROLD D. MCCOY,
*Secretary.*

[F.R. Doc. 61-7200; Filed, July 31, 1961; 8:49 a.m.]

[1] Filed as part of the original document.